

decreased. Such an adjustment is commonly referred to as a “fee enhancement” or “multiplier.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (*Ketchum*).) The trial court is neither foreclosed from, nor required to, award a multiplier. ... The Supreme Court has “set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: ‘(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; [and] (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award.’” *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247-248.

The Court has considered the factors listed above and declines to adjust the lodestar with a multiplier. This is a straightforward lemon law action in which both sides are well versed and relying largely on form pleadings and discovery. While the Court acknowledges the attorneys’ skill and experience in this practice area, the case did not present novel and difficult questions or unusual skill in presentation. The nature of the litigation was within counsel’s standard practice and did not preclude other employment. Finally, the contingent risk and delay in payment are standard in lemon law actions, and the delay was not unusually long or unexpected.

Costs and Expenses: The Song-Beverly Act provides that the court will award a successful plaintiff a sum equal to the aggregate amount of costs and expenses, which have been determined to have been reasonably incurred. Civ. C. § 1794(d). Plaintiff seeks \$5,919.23 in costs. GM requests a reduction of \$5,484.23 in costs. The Court finds that Plaintiff’s costs are recoverable and reasonably incurred with the exception of \$430.21 for Item 14 (this Court does not support electronic filing, and it is unclear how this Item is different from fees incurred for Item 1), and Item 15 which is not described. Costs of \$5,489.02 are awarded.

The motion for attorney fees and costs is **GRANTED**. Attorney fees of \$23,440.00 and costs of \$5,489.02 are awarded, for a total of \$28,929.02. No proposed order has been lodged as required by Local Rule 5.17(D). Plaintiff shall submit the order.

The Court notes that the matter is calendared on July 6, 2026 for a review hearing. The July 6, 2026 review hearing is **VACATED**. The matter will be on calendar on **Tuesday, September 8, 2026 at 9:00 a.m. in Department 63** for status of dismissal. If the matter is not dismissed by September 8, 2026, the parties are ordered to file status statements at least five court days prior to September 8, 2026.

9:00 a.m. – Review Hearings

ALPINE BLUE VS. HURLEY, ET AL

CASE NUMBER: CVCV21-0198057

This matter is on calendar for review regarding status of judgment or dismissal. The matter has not been dismissed. The matter is continued to **Monday, August 31, 2026 at 9:00 a.m. in Department 63** for status of judgment or dismissal. If the file has not been closed by the next hearing, Plaintiff and any party that filed a Cross-Complaint is ordered to file a status statement no less than five court days prior to the hearing that outlines what is still pending and when a dismissal will be filed. **No appearance is necessary on today’s calendar.**

AMARANT VS. MONARCH LEARNING CENTER CHARTER SCHOOL, ET AL.

CASE NUMBER: 23CV-0202392

This matter is on calendar for review regarding status of judgment/dismissal. The Court notes that a Notice of Settlement was filed on August 27, 2025. A minor’s compromise petition has not been filed for the minor plaintiff despite the Court continuing the matter two months for counsel to file. **An appearance is necessary on today’s calendar.**